

RIVERSIDE CITY COLLEGE

ASSOCIATED STUDENTS
of riverside city college



Constitution

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Ratified by the Associated Students of Riverside City College on: May 25, 2018

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PREAMBLE

We, the students of Riverside City College, in order to establish an effective Associated Student Organization representing student rights and interests through the principles of democracy and good governance to promote the personal and civic growth of all students, do hereby establish this Constitution of the Associated Students of Riverside City College herein referred to as ASRCC.

ARTICLE I: THE ASSOCIATED STUDENT ORGANIZATION

Section 1: Composition

The ASRCC shall be represented through the Executive, Legislative, and Judicial branches of governance. All meetings of the ASRCC shall be in compliance with the Ralph M. Brown Act and follow parliamentary procedure.

Section 2: Mission Statement

In order to represent students through the principles of democracy and good governance, as well as encourage the personal and civic growth of all students at Riverside City College, herein referred to as RCC, the ASRCC shall:

- A. Protect student rights and interests by advocating on all levels of governance, financing student activities and programs, and ensuring access to all student government affairs through a fair and representative process.
- B. Enhance communication and cooperation between all constituencies by providing a forum in which students may discuss issues, express their concerns, and encourage political participation.
- C. Promote and stimulate student involvement and awareness of the academic development opportunities available within the Riverside Community College District (herein referred to as the RCCD).
- D. Remain in accordance with federal and state law, the California Education Code, and RCCD Board policies by continuously reviewing its guidelines, policies, and procedures.

Section 3: Nondiscrimination Policy

All governmental bodies, clubs, and co-curricular organizations of ASRCC shall not discriminate against any person on the basis of age, ancestry, gender or gender identity, genetic information, national or social origin, marital status, medical condition, physical or mental disability, differential political opinion, primary language, race or color, religion, sex, or sexual orientation. The ASRCC shall condemn any and all discriminatory practices by entities operating within ASRCC and shall consider the removal of its business or funding from said entities.

Section 4: Membership

All students are eligible to participate in ASRCC if they are enrolled in academic credit at RCC and pay their student services fees.

Section 5: Fiduciary Responsibility

The ASRCC shall have the oversight of the Student Activity Fund including; allocation of funds from, ratify yearly budgets for ASRCC, Clubs, Organizations, and Athletics, propose student fee modifications, and other budgetary responsibilities as they arise.

ARTICLE II: EXECUTIVE BRANCH

Section 1: Purpose

The ASRCC shall designate its powers of enforcement of all ASRCC laws, policies, and procedures to its Executive Branch to serve as liaison between the ASRCC student membership and the administration, faculty, and staff of RCC, and promote and represent the issues of RCC students, in consultation with their faculty advisor.

Section 2: Composition

The Executive Branch shall consist of a President and Vice President, as well as an Executive Cabinet consisting of; an Executive Treasurer, Secretary, and Directors of respective committees; and advisor shall serve as ex-officio.

Section 3: Meetings

The meetings of the ASRCC Executive Cabinet shall be held weekly during the fall and spring semesters, and at least two (2) meetings to be held during both winter and summer intersessions. All Executive Cabinet members shall be responsible for allocating time designated for ASRCC Executive meetings, committee meetings, and shared governance.

Section 4: Qualifications

- A. The President and Vice President must be elected, on the same ballot, according to Article VI Section 1.01.1 and have complied with all election procedures outlined in the ASRCC Bylaws and election packets to be eligible for office; and they must meet the following eligibility requirements:
 - 1. Paid their student services fees and have RCC as their home campus.
 - 2. Must have completed a minimum of twelve (12) units prior to running, and must be enrolled in a minimum of six (6) units at RCC per semester during their term of office.

3. Have a minimum 2.5 cumulative grade point average prior to running and maintain during their term of office.
 4. Must have at least two (2) semesters of experience within one of the three (3) branches of ASRCC.
- B. The Executive Treasurer and Secretary, as well as Directors of respective committees, shall be appointed by President, and must meet eligibility requirements.
1. Have paid their student services fees and have RCC as their home campus.
 2. Must have completed a minimum of twelve (12) units at RCC prior to the beginning of their term.
 3. Must be enrolled in at least five (5) semester units and maintain a minimum 2.0 cumulative grade point average during their term of office.
- C. Designate meeting times for their assigned responsibilities Regular attendance at Executive Cabinet and Shared Governance meetings is expected unless otherwise excused.
- D. If qualifications are not met, the Representative in question shall be ineligible for office, and are subject to removal procedures.

Section 5: Term Limits

- A. The President and Vice-President shall serve a one (1) year academic term to begin the first day after the end of the spring semester in which they were elected, unless elected by special circumstance, and conclude the last day of the following spring semester.
- B. The Directors of respective committees as stated in the ASRCC bylaws shall serve a one (1) year academic term to begin the first day of their appointment and shall conclude the last day of the following spring semester.
- C. An Executive Cabinet Representative shall not serve more than four semesters (4) in the same governance position, and maximum of six (6) semesters total in any governance position and shall not serve in more than one branch of government simultaneously unless authorized by this constitution.
- D. Appointed Resource Center Representative and committee members may serve and unlimited number of terms in appointed committee roles provided they remain in good standing.
- E. Executive Cabinet Representatives shall not be an executive member, including President, Treasurer, or ICC representative, of any club or co-curricular organization within ASRCC.

Section 6: Duties and Powers

A. President

1. Shall serve as the liaison between faculty, staff, administration, and RCC Students.
2. Prepare, present, and oversee, in conjunction with the Senate, the goals and objectives of ASRCC. Provide full or partial reports regarding the State of the Association when requested to do so by the Senate or any Representative body of the ASRCC.
3. The President shall preside over the Executive Cabinet meetings and will only vote in the instance of a tie.
4. Be the Chief Executive Officer and nominate Representatives to the role of Executive Treasurer, Executive Secretary, and Directors of respective committees, as well as the Supreme Court Chief & Justice positions, to the ASRCC Senate for confirmation; as well as describe and delegate duties and powers of any position within the Executive Cabinet.
5. Present, execute, and enforce ASRCC resolutions, policies, and procedures as approved by the ASRCC Senate.
6. Has the power to veto legislation passed by the ASRCC Senate, as defined in the bylaws, he/she finds objectionable by submitting a written list of objections to the Senate within five (5) school days.
7. Be the official co-host, along with the Vice-President, for all ASRCC government sponsored events, and shall perform all other duties delegated to them by the ASRCC Constitution, ASRCC bylaws, the parliamentary authority, or standing rules of the Executive Cabinet.
8. Meet weekly with the ASRCC advisor or designated appointee, and post and maintain regular office hours.
9. Fulfill any duties assigned to them by the RCCD Student Trustee as well as give continual updates regarding RCC activities. If the position of Student Trustee is vacant and was elected with RCC as their home college of record, the President shall serve as Student Trustee Tempore for the remainder of their term.
10. Shall serve on RCC Shared Governance.

B. Vice-President

1. Be the Chief Legislative Officer and the Parliamentarian of ASRCC.

2. Serve as the Senate Chair and must preside over all Senate meetings excluding impeachment proceedings, and shall only vote in the instance of a tie.
3. Describe and delegate duties and powers deemed necessary and proper, and oversee the fulfillment of duties and obligations of Senators.
4. Report actions and updates of the Senate to the President and ASRCC Executive Cabinet.
5. Shall advise, assist, and be the official co-host, along with the President, for all ASRCC events.
6. Shall assume the role of Chair of the Executive Cabinet in the absence of the President or at their request.
7. Meet weekly with ASRCC advisor or designated appointee, and post and maintain regular office hours
8. Assist in the fulfillment of any duties assigned to them by the RCCD Student Trustee, including advising of students issues and concerns at RCC.
9. Shall serve on RCC Shared Governance.

C. Executive Treasurer

1. Chair the ASRCC Budget Committee and meet weekly with Senate Finance Chair.
2. Advise the ASRCC President and Vice-President on matters related to ASRCC Budget, including preparation and presentation of regular budget reports to the Executive Cabinet and Senate.
3. Advise all ASRCC committees, councils, clubs, and organizations on budgetary matters including at least one (1) budget training per semester.
4. Maintain accounting paperwork and signing of budget requisitions.
5. Meet regularly with ASRCC advisor or designated appointee, and post and maintain regular office hours
6. Shall serve on RCC Shared Governance.

D. Executive Secretary

1. Maintain accurate agendas and minutes of Executive Cabinet, Senate, and Supreme Court meetings, and make them open and available to the public.

2. Maintain attendance records of all ASRCC members, and advise ASRCC President and Vice President on matters of ASRCC member attendance, including attendance of respective committees.
3. Regularly collect minutes, attendance records, agendas, and distribution of public records of ASRCC standing and ad-hoc committees.
4. Meet regularly with ASRCC advisor or designated appointee, and post and maintain regular office hours
5. Shall serve on RCC Shared Governance.

E. Directors

1. Preside over respective committees, as designated by the President, including recruiting and retaining regular committee membership, convening regular meetings, prepare and post agendas.
2. Plan, advertise, execute, and evaluate programs and events on behalf of ASRCC.
3. Advise the ASRCC President and Vice-President on programs and events deemed relevant and necessary for RCC student body, as well as club and organizations initiatives.
4. Meet weekly with the ASRCC advisor or designated appointee, and post and maintain regular office hours.

F. Advisors

1. An advisor should serve as an ex-officio member of the Executive Cabinet. Shall serve as consultation on all matters before the ASRCC Executive Cabinet
2. An advisor must be a member of the faculty or administration of RCC.
3. An advisor must be in attendance in order for official business to occur.

ARTICLE III: LEGISLATIVE BRANCH

Section 1: Purpose

The general responsibilities of the Legislative Branch shall be to pass legislation and codes, resolutions or recommendations, ratify Club constitutions, initiate programs, confirm all Executive Cabinet and Supreme Court appointments, and be responsible for approval of ASRCC budget and line-item changes, in consultation with their faculty advisor.

Section 2: Composition

The Legislative Branch shall be maintained by the ASRCC Vice President, who shall serve as the chair, and shall consist of a maximum of fifty (50) Senators to include, academic units, engagement programs, and senators at large as defined in the ASRCC bylaws, and an ex-officio advisor.

Section 3: Meetings

All meetings of the ASRCC Legislative Branch shall be held weekly during the fall and spring semesters, and at least two (2) meetings to be held during both winter and summer intersessions. All Senators shall be responsible for allocating time designated for ASRCC Senate meetings, senate committee meetings, and shared governance meetings.

Section 4: Qualifications

The Vice-President must be elected, as ticket with the President, by a simple majority of the total votes cast according to Article VI Section 1.01 and have complied with all election procedures to be eligible for office.

Vice President must meet the following eligibility requirements:

1. Paid their student services feed and have RCC as their home campus.
2. Must have completed a minimum of twelve (12) units prior to running, and must be enrolled in a minimum of six (6) units at RCC per semester during their term of office.
3. Have a minimum 2.5 cumulative grade point average prior to running and maintain during their term of office.
4. Must have at least two (2) semesters of experience within one of the three (3) branches of ASRCC.

Senators must be elected by a simple majority of the total votes cast according to Article VI Section 1.02 and have complied with all election procedures to be eligible for office.

Senators must meet the following eligibility requirements:

1. Have paid their student services fees and have RCC as their home campus.
2. Must be enrolled in at least five (5) semester units and maintain a minimum 2.0 cumulative grade point average during their term of office

Section 5: Term Limits

- A. Senators shall serve a one (1) year academic term to begin the first day after the end of the spring semester in which they were elected and conclude the last day of the subsequent spring semester, unless elected under special circumstances to which the term begins the first day following confirmation and to end the subsequent spring semester.

- B. Shall serve a maximum of six (6) semesters total in any governance position.
- C. Shall not serve in more than one branch of government simultaneously unless authorized by this constitution.

Section 6: Duties and Powers

- A. Vice President
 - 5. Serve as the Senate Chair and preside over all Senate meetings excluding impeachment proceedings and shall be responsible for establishing meeting times for the Senate for the following academic semester, and shall only vote in the instance of a tie.
 - 6. Describe and delegate duties and powers deemed necessary and proper, and oversee the fulfillment of duties and obligations of Senators.
- B. Report actions and updates of the senate to the President and ASRCC Executive Cabinet weekly. Senators
 - a. Confirm all appointments for the Executive Treasurer and Secretary, the Directors of respective branches, the Supreme Court Chief Justice, Justices, and all vacancies in the Senate. The Senate shall confirm all appointments with a two-thirds (2/3) vote of its members present during the meeting in which the vote takes place.
 - b. The Senate shall reconsider and enact any legislation brought to the senate floor with a two-thirds (2/3) vote of its members present during the meeting in which the vote takes place.
 - c. Appoint a Pro-Tempore from its membership with a two-thirds (2/3) vote of its members present during the meeting in which the vote takes place.
 - d. Each Senator shall serve on a minimum of one (1) shared governance committee at RCC.
 - 1. Have the power to enact impeachment proceedings with the ASRCC Supreme Court against all elected and appointed Representatives. C. Senate Pro Tempore. In the absence of the Vice-President, the Senate Pro-Tempore shall serve as the Senate Chair.
 - 2. The Senate Pro-Tempore shall appoint Committee Chairs from its membership in accordance with the ASRCC bylaws.
 - 3. The Senate Committee Chairs shall have all the duties, powers, and rights of a Senator.

D. Advisors

4. An advisor should serve as an ex-officio member of the Senate
5. Shall serve as consultation on all matters before the ASRCC Legislative Cabinet
6. An advisor must be a member of the faculty or administration of RCC.
7. An advisor must be in attendance in order for official business to occur.

ARTICLE IV: JUDICIAL BRANCH

Section 1: Purpose

The general responsibilities of the Judicial Branch are to be the official interpreters of all ASRCC governing documents, laws, and policies; shall hear and investigate all filed grievance matters and review the legality of any action taken by the ASRCC; and coordinate and oversee all procedures regarding ASRCC election, as well as to work with Moreno Valley and Norco Colleges to coordinate RCCD Student Trustee elections, in consultation with their faculty advisor.

Section 2: Composition

The Supreme Court shall consist of the Supreme Court Chief Justice, Supreme Court Pro-Tempore, and maximum of seven (7) Justices, and advisor shall serve as ex-officio.

Section 3: Meetings

All meetings of the ASRCC Judicial Branch shall be scheduled regularly. All Justices shall be responsible for allocating time designated for ASRCC Supreme Court meetings and shared governance meetings for the following academic semester.

Section 4: Qualifications

The Supreme Court Chief Justice and Justices are nominated for appointment by the ASRCC President and Vice- President and require the 2/3 vote of all eligible Senators for appointment.

- A. All Supreme Court Justices, including Chief Justice and Justice Pro-Tempore, must meet the following eligibility requirements: have paid their student services fees and have RCC as their home campus.
- B. Completed a minimum of six (6) units at RCC prior to the beginning of their term.
- C. All members of the Supreme Court must be enrolled in at least five (5) semester units and maintain a 2.0 cumulative grade point average during their term of office.

Section 5: Term Limits

All members of the Supreme Court shall begin their term the first day of Senate confirmation and shall remain in office until the last day of the academic spring semester; shall serve a maximum of six (6) semesters total in any governance position; shall not serve in more than one branch of government simultaneously unless authorized by this constitution.

Section 6: Duties and Powers

Justices shall have the right to cast one (1) vote on all administrative and procedural matters, grievances, judgments and impeachments before the Supreme Court. The Supreme Court shall hold a minimum of one (1) ASRCC By-Law Review workshop each academic school year, and a minimum of two (2) open campus forums each semester; and Justices shall declare the constitutionality of all Articles of Impeachment and precede impeachment trials by a majority vote of its members present during the meeting in which the vote takes place.

A. Supreme Court Chief Justice

1. Convene and preside over all Supreme Court meetings and shall be responsible for establishing meeting times for the Supreme Court.
2. Serve as the representative of the Supreme Court regarding all judicial and elections procedures and be responsible for the transmission of all Supreme Court decisions, unless assigned to another Justice, to the Executive and Legislative Branches.
3. Describe and delegate duties and powers deemed necessary and proper, and oversee the fulfillment of duties and obligations of Justices. The Supreme Court Chief Justice shall only vote in the instance of a tie.
4. Chair all impeachment trials in which they are not subject to. Should the Chief Justice receive Articles of Impeachment, the Pro-Tempore shall chair the Supreme Court meeting regarding the Impeachment of the Chief Justice.

B. Supreme Court Justice Pro-Tempore

1. The Pro-Tempore shall have all the duties, powers, and rights of a Justice.
2. Assist the Chief Justice in all administrative tasks and maintain the minutes and attendance record of all Supreme Court meetings, and assist the Chief Justice and Justices on any parliamentary matter before the Supreme Court.
3. Be the Chair of the Supreme Court in the absence of the Chief Justice.

4. Appointed by a two-thirds (2/3) vote of all Supreme Court Justices present during the meeting in which the vote takes place.

C. Advisors

8. An advisor should serve as an ex-officio member of the Supreme Court.
9. Shall serve as consultation on all matters before the ASRCC Judicial Branch.
10. An advisor must be a member of the faculty or administration of RCC.
11. An advisor must be in attendance in order for official business to occur.

ARTICLE V: CLUBS AND CO-CURRICULAR ORGANIZATIONS

Section 1: Ratification of Clubs and Organizations

The ASRCC shall oversee the creation, ratification, and communication with Clubs and Organizations at RCC.

Section 2: Purpose

The purpose of clubs and co-curricular organizations is to encourage personal and professional growth through social, cultural, occupational, and service co-curricular opportunities that supplement the academic experience.

Section 3: Composition

- A. A “Club” shall refer to an officially chartered and ASRCC approved extra-curricular group whose active membership is limited to students and has at least one advisor who is a current full-time faculty member of the college.
 1. Students are not receiving course credit for participation
 2. Student facilitated
 3. Has a minimum of one (1) full time faculty advisor with an approved RCC course load, or their designee, as its sponsor.
- B. A Co-Curricular Organization, herein referred to as “Organizations” refers to a co-curricular organization whose students, in addition to participation in extracurricular activities, receive class credit or hours for their participation and the college collects state monies for attendance.

1. Students are receiving course credit for participation
2. Faculty facilitated
3. Has a minimum of one (1) full time faculty advisor with an approved RCC course load, or their designee.

Section 4: Active

A. A club shall be considered active and afforded the privilege to operate at RCC when it:

1. Has submitted bylaws to the Student Activities Office for approval that is in compliance with all rules and procedures stated by the RCCD Board of Trustees, RCC Administration Procedures, and the ASRCC Constitution.
2. Submit a membership roster each academic semester with a minimum of seven (7) active students, who have paid their student activities fees, have RCC as their home campus, and enrolled in a minimum of one (1) unit at RCC; Including an active President, Treasurer, and Inter-Club Council (ICC) Representative.
3. Has a minimum of one (1) full time faculty advisor with an approved RCC course load, or their designee, as its sponsor.
4. Clubs shall hold regular and open meetings.

B. An Organization shall be considered active and afforded the privilege to operate at RCC when it:

1. Has submitted a course syllabus to the Student Activities Office for approval that is in compliance with all rules and procedures stated by the RCCD Board of Trustees, RCC Administration Procedures, and the ASRCC Constitution.
2. Submit an enrollment roster each academic semester. All students enrolled in co-curricular organization courses are required to pay their student fees and have RCC as their home campus.
3. Has a minimum of one (1) full time faculty advisor with an approved RCC course load, or their designee.

Section 5: Good Standing

A. A club shall be considered in good standing when they meet the criteria in Article VI, Section 3.01, and:

1. Submit their roster no later than 6 weeks after the start of each academic semester
2. Have one (1) delegate present all ICC meetings; and A Club ICC Rep may delegate their presence and right to vote to any other active member of their club as a proxy for an absence, with prior notification to ICC.
3. Each Club shall have no more than three (3) absences from ICC Meetings per semester.

4. After 3 absences, a club may be recommended for suspension to the Senate

B. An Organization shall be considered in good standing when they meet the criteria in Article VI, Section 3.02 and:

1. Submit their roster no later than 6 weeks after the start of each academic semester.
2. All students must have paid their student services fees no later than 6 weeks after the start of each semester.

Section 6: Suspension and Appeal

The ASRCC Senate shall vote to suspend any club or organization who is not in compliance with all rules and procedures stated by the RCCD Board of Trustees, RCC Administration Procedures, and the ASRCC Constitution.

A. A club or organization who is suspended shall lose all privileges granted to them, and shall be considered inactive, if they fail to abide by Article V, Section 4 during the academic year, or at the recommendation of the Inter-Club Council. Suspension shall include;

1. The forfeiture of usage all RCC facilities and equipment
2. The freezing of funds
3. Prohibited from recruiting and or promoting events at RCC
4. Removed from the website

B. All suspended Clubs and Organizations may forfeit a balance from each of its ASRCC budget line-item, as stipulated by the ASRCC Senate towards club and/or organization contingencies for the academic school year.

C. Club and organizations who are not in good standing, or are inactive, for two (2) consecutive academic school years are not considered eligible, and may not apply for funds, facilities, or equipment until the beginning of the academic year.

D. Clubs or organizations may appeal any disciplinary action taken by the ASRCC Senate to the ASRCC Supreme Court. A club or organization that has been suspended may apply for reinstatement at the beginning of the subsequent semester.

ARTICLE VI: ELECTIONS

Section 1: ASRCC Elections

1. There shall be one (1) ASRCC open election each spring to elect the President, Vice-President, and Senators. All positions shall be filled in compliance with Elections Procedures outlined in the ASRCC By-laws.
2. The position of President and Vice-President shall be elected together on one (1) ticket

and shall receive a minimum of one-hundred (100) votes in the affirmative. The winning ticket will be determined by that receiving a simple majority of the votes cast.

3. Senate seats shall not exceed fifty (50) in total and shall be filled by candidates receiving a minimum of fifty (50) votes in the affirmative, in descending order.
4. All students enrolled at RCC are eligible to cast one vote for President/Vice President and Senators.

Section 2: Student Trustee Elections

In accordance with RCCD Board Policy (*BP and AP 2015 Student Trustee Bylaws*) there shall be one (1) standard open RCCD election each spring semester to determine the RCCD Student Trustee, in coordination with Norco and Moreno Valley Colleges. The winning candidate will be determined by a simple majority of the total votes cast at all three colleges.

Section 3: Special Elections

In the event there is no clear majority vote for the President and Vice-President with a minimum of one-hundred (100) students voting in the affirmative, a special election shall take place within seven (7) school days between the two (2) candidates receiving the highest number of votes in the first election.

Should the Senate representation fall below ten (10) Senators, a special election should take place to fill those vacancies to reach a minimum of ten (10).

Section 4: Special Appointments

Should there be vacancies for any positions within the Executive, Legislative, or Judicial Branches, the President and Vice-President have the authority to hold special appointments.

A. The positions of Executive Treasurer, Secretary, and Directors of Respective Councils, as well as the Supreme Court Justices shall be nominated by the ASRCC President and appointed with a two-thirds (2/3) vote of ASRCC Senators present during the meeting in which the vote takes place.

B. All Senate available positions shall be made public to the student population for ten (10) school days before consideration. If the ten (10) Senate seats are not filled during the special election, appointments shall be made.

C. Students who have completed the most current application and have met the qualifications checked by the Student Activities Office, and collected the minimum 50 student signatures shall be considered candidates and shall be presented to the Senate for final confirmation.

D. Should a Candidate not-receive confirmation, the position shall re-open and be made public and available to student population for five (5) school days. Rejected Candidates cannot

reapply until the following academic term.

ARTICLE VII: VACANCIES AND REMOVAL

Section 1: Removal from Office

Any elected or appointed ASRCC representative shall forfeit their position for any one of the following reason:

- A. No longer enrolled as an RCC student
- B. Excessively missing meetings or ASRCC obligations outlined in the Executive, Legislative, and Judicial branch meetings and qualifications, for unexcused reasons. An unexcused absence is defined as an absence without notice or stated emergency.
- C. Falling below the minimum GPA and/or credit hour requirements
- D. Completed all requirements for graduation and/or transfer.

Section 2: Resignation from Office

Any ASRCC representative deciding to resign from their appointed and/or elected position should submit a formal announcement to the ASRCC President and the Coordinator of Student Activities. If the ASRCC President is resigning, they should submit their formal resignation to the Vice President and Coordinator of Student Activities. Anyone resigning from their position must submit transition materials to the ASRCC President within 72 hours of their departure.

Section 3: Impeachment Process

Any ASRCC representative, RCC student, Coordinator of Student Activities, and/or the Dean of Student Services may bring forth charges of misconduct or dereliction of duty against an ASRCC representative, in writing to the Vice President and the Coordinator of Student Activities

- A. The Senate shall have no less than 72 hours and no more than 1 week to convene and determine the constitutionality of all Articles of Impeachment and whether to precede impeachment by a majority vote of its members present during the meeting in which the vote takes place
- B. Should the Senate determine the impeachment proceedings continue, they will notify the Supreme Court Chief Justice to convene the Supreme Court. Impeachment document(s) are forwarded to the body in which the non-Supreme Court ASRCC member serves before processing occurs. Any additional documents for consideration may be also forwarded for review

C. Supreme Court shall call to order a special meeting to conduct the trial of the non Supreme Court ASRCC member. The Supreme Court Chief Justice shall act as the chair while the rest of Supreme Court Justices shall act as the jury.

D. In accordance with the Brown Act, the trial held during the special meeting must be conducted in an open session with an agenda posted 24 hours in advance, and minutes must be taken and made available to the public after the meeting. *Exceptions are listed in the Brown Act.*

E. In the event the Supreme Court finds in favor of impeachment, all powers and privileges given to the individual will be suspended indefinitely. Any impeached individual may not apply for any ASRCC position listed in the constitution or bylaws until the next academic school year.

Section 4: Appeal

All Representatives shall have the opportunity to appeal a decision regarding Impeachment or Removal through the Grievance Procedure of the Supreme Court within five (5) school days of removal.

- VIII.4.a. Each body shall reserve the right to remove any Member within its respective body not listed within the ASRCC Constitution with a two-thirds (2/3) vote of their members present during the meeting in which the vote takes place. The criteria for removal shall be stipulated in the body's bylaws.
- VIII.4.b. All Representatives holding the positions of ASRCC President, Vice-President, Executive Treasurer and Secretary, the CAC, ICC, and PR Directors and Assistant Directors, the Supreme Court Chief Justice, Pro-Tempore, Justices, as well as Senators may be removed through Impeachment procedures provided by the Supreme Court.
- VIII.4.c. All vacancies not listed within the ASRCC Constitution may be appointed by their respective bodies with a two-thirds (2/3) vote of their members present during the meeting in which the vote takes place.

Section 5: Order of Succession

In the event of a removal, or vacancy of the ASRCC President, Vice-President, or Supreme Court Chief Justice, the order of succession shall, with all duties and terms of office, be maintained within their respective branches.

A. The President shall be succeeded by the Vice-President who shall serve as the interim President for the remainder of the term in which the President was elected;

B. The Vice-President shall be succeeded by the Senate Pro-Tempore who shall serve as the Interim Vice-President for the remainder of the term in which the Vice-President was elected

C. The Supreme Court Chief Justice shall be succeeded by the Supreme Court Pro-Tempore who shall serve as the Interim Chief Justice for the remainder of the term in which the Chief Justice was appointed.

ARTICLE VIII: PARLIAMENTARY AUTHORITY

The Parliamentary Authority of the ASRCC shall be the most current edition of Robert's Rules of Order. All governmental bodies of the ASRCC shall hold their meetings in accordance with the parliamentary authority. A two-thirds (2/3) vote of members of the ASRCC Executive Cabinet, Senate, and Supreme Court present during the meetings in which the votes take place shall be required to amend the Parliamentary Authority, with the exception of the ASRCC Budget Committee.

ARTICLE IX: ASRCC COMMITTEE RESPONSIBILITIES & BYLAWS

Section 1: Standing Committee Creation

ASRCC President, Vice- President, and Supreme Court Chief Justice shall reserve the right to create permanent standing committees within the Executive, Legislative, and Judicial Branches to carry out the ASRCC business.

A. A Director is responsible for convening the established committee, including establishing regular meeting times, regular committee attendance, and prepare and post agendas, and the production and distribution of minutes

B. All bodies of the government shall have the power to maintain and administer their respective bylaws yearly. All grammatical and substantive changes may be approved with a two-thirds (2/3) vote of members present during the meeting in which the vote takes place. Upon adoption, the Supreme Court may issue an Advisory Opinion regarding the proposed changes to the respective body. If the advisory opinion finds breaches of constitutionality, the amendments shall become null and void. After the Supreme Court advisory opinion, they must be sent to Senate for ratification.

ARTICLE X: AMENDMENTS AND RATIFICATION

Section 1: Amendments

All amendments to the ASRCC Constitution must be reviewed by the ASRCC Legislative and Judicial Branches, before being presented to the students of RCC through a constitutional referendum.

A. Substantive amendments to the Constitution shall be approved by the Senate with a two-thirds (2/3) vote of its members present during the meeting in which the vote takes place. Spelling or grammatical changes may be adopted by the Senate with a simple majority vote of its members present during the meeting in which the vote takes place.

B. Once approved by the ASRCC Senate, the ASRCC Supreme Court shall ensure the proposed Constitution is in compliance with State and Federal law, the California Education Code, and RCCD board policies. The Supreme Court may administer a referendum of the ASRCC Constitution with a two-thirds (2/3) vote of its membership.

Section 2: Referendums.

A. The Supreme Court shall post amendments to the Constitution no later than seventy-two (72) hours prior to the Referendum in full view of the public. The students of RCC shall be notified of the referendum and the notice to vote.

C. The results of the referendum will be posted no later than 24 hours after the votes have been tabulated.

D. Any student or club in good standing can place a referendum on the ballot during the ASRCC election. Any referendum submitted by a club shall appear before the Supreme Court no later than 1 week prior to elections to ensure compliance with State and Federal law, the California Education Code, and RCCD board policies.

E. Any passed referendum will be implemented in consultation and subject to final actions and decisions of the Vice President of Student Service, President of RCC, and RCCD Board of Trustees.

Section 3: Ratification

The proposed referendum is passed with a simple majority vote in the affirmative of students voting from the last three years and shall be considered effective immediately.

ARTICLE XI: CONSTITUTIONAL AUTHORITY

This Constitution of the Associated Students of Riverside City College shall supersede any all-previous constitutions (ASRCC, Clubs, or Organizations) as of the date of ratification. As well, this Constitution shall supersede any all previous, or current, By-Laws of the Associated Students of Riverside City College as of the date of ratification.

Late Date of Revision: May, 2018

